BATANAI TAPUWA ZENGENI

Versus

PRIMEVAL TRADING (PRIVATE) LIMITED t/a EMINENT CARS

And

BLESSING MATIMURA

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 9 March 2026 & 31 August 2026

Civil trial

B. Taruvinge, for the plaintiff
A. Chimhofu, for the 1st and 2nd defendants

DUBE-BANDA J:

[1] The plaintiff sued out a summons against the defendant praying for the delivery of a Land Rover AGA4472 or, in the alternative, a refund of USD$76000 or its equivalent in local currency. It is sought that it be ordered that the defendants are jointly and severally liable for the delivery of the Land Rover AGA4472 or alternatively payment of USD$7600 or its equivalent in local currency.

[2] The plaintiff and the second defendant are natural persons, while the first defendant is a company registered in terms of the laws of Zimbabwe.

[3] In the declaration, the plaintiff contends that on 25 February 2023, the plaintiff and the first defendant entered into an agreement of sale in respect of the Land Rover AGA4472, at a purchase price of USD$80000, over and above a swap and top-up with an Audi AGF1973. It is contended that the second defendant, acting as the representative of the company, signed the agreement of sale. It is stated that on the date of the signing of the agreement of sale, the plaintiff paid to the company a sum of USD$76000, leaving a balance of USD$4000. And the second defendant received the part purchase price and the Audi AGF1973 on behalf of the company.

[4] It was pleaded further that in August 2023, the second defendant informed the plaintiff that the Audi AGF1973 had developed a mechanical fault which required attention. It was averred that the second defendant returned the Audi AGF1973 to the plaintiff and forcibly repossessed the Land Rover AGA4472, promising to return it once the Audi AGF1973 had been repaired. It is stated that after the Audi AGF1973 was repaired, the second defendant was advised to collect it and return the Land Rover AGA4472; he did not do as requested. It is pleaded that the company, through the second defendant, refused or neglected to return the Land Rover AGA4472 to the plaintiff and further refused to refund the USD$76000. It is stated that the company and the second defendant no longer intend to abide by the terms of the agreement between the parties. It is on these pleaded facts that the plaintiff seeks the relief stated above.

[5] In their plea, the defendants aver that the transaction did not happen in February, but in August 2023. It is contended that the second defendant cannot be sued in his personal capacity, for the alleged wrongs of the company, unless the corporate veil has first been pierced. It is stated that the plaintiff did not enter into an agreement of sale with the defendants, but with a third party, one Bursal Katena. It is contended that Bursal Katena gave the company a mandate to sell the Land Rover AGA4472 at its Car Sale, as an agent. It is stated that the plaintiff is aware of this position and has not approached the court with *bona fide* intentions. It is stated that the company signed the agreement as an agent, and that the purchase price was not received by the defendants. The company received its agency commission from Bursal Katena. It is contended that the USD$80000 was not the purchase price, since the Land Rover AGA4472 was not being bought for cash. It was an agreed monetary value of the Land Rover AGA4472, and it was to be paid by an exchange with two other vehicles, and a cash top-up. It is averred that the plaintiff and Bursal Katena had a swap and top-up agreement, in terms of which the plaintiff was given the Land Rover AGA4472, and in exchange he gave Bursal Katena a Range Rover AFC 9977 valued at USD$55000 and an Audi AFG1973 valued at USD$10000 and paid USD$11000 in cash. A balance of USD4000 was to be paid to Bursal Katena in cash.

[6] It is disputed that the plaintiff made a cash payment of USD$76000. It is further contended that the Range Rover AFC9977 was repossessed from Bursal Katena by some persons on the basis that it belonged to the deceased estate of one Lanny Muzwidzwa. In consequence

thereof, Bursal Katena cancelled the agreement, returned the Audi AGF1973 and repossessed the Land Rover AGA4472 from the plaintiff. The defendants deny that they dispossessed the plaintiff of the Land Rover AGA4472, and that it is in their possession. In fact, the defendants contend that the plaintiff has sued a summons seeking a refund of the USD$11,000.00 he paid to Bursal Katena as part of the agreement. The defendants seek that the action be dismissed with costs on a legal practitioner and client scale.

[7] In his replication, the plaintiff insists that the agreement happened in February 2023 as indicated in the agreement of sale. He insists that the citation of the second defendant is proper because he is the director of the company and he is the person who took the decision to sign the agreement on behalf of the company. He insists that the second defendant was the owner of the Land Rover AGA4472. The plaintiff persists that he entered into an agreement with the defendants, and disputes that the defendants were agents of Bursal Katena. It is stated that the second defendant communicated with the plaintiff regarding the mechanical fault on the Audi AGF1973. It is contended that the issue in which the plaintiff is suing Bursal Katena arises from circumstances different from this case. The plaintiff persists that he swapped the Audi AGF1973 and paid a cash deposit of USD$76000, leaving a balance of USD$4000.

[8] At a pre-trial conference held before a judge in terms of r 49(5) of the High Court Rules, 2021, the following were identified as issues for trial:

a) Whether or not the plaintiff pleaded a competent claim recognized by law.
b) Whether or not the second defendant is properly cited in the proceedings in his personal capacity.
c) Whether or not plaintiff entered into an agreement with the first defendant for the sale of the Range Rover vehicle registration number AGA4472.
d) Whether or not the plaintiff paid USD$76,000.00 to the first defendant.

[9] In terms of the pre-trial conference minute, the *onus* on issues (a) and (b) is on the defendants, and on issues (c) and (d) on the plaintiff. Although the duty to begin was not canvassed at the pre-trial conference before a judge, as the plaintiff bears the *onus* of proof on some of the issues, he has the duty to begin. This is so because the common law position is that where the *onus* on one or more issues is on the plaintiff and on other issues on the defendant, the duty to begin shall be on the plaintiff. The *onus* of proof means the duty cast on

a litigant to adduce evidence that is sufficient to persuade a court, at the end of the trial, that the claim or the defence, as the case may be, should succeed. See: *Pillay* v *Krishna* 1946 AD 946 at 952-3. I now turn to determine the issues for trial as delineated in the pre-trial conference minute, bearing in mind the seat of the *onus.*

Whether or not the plaintiff pleaded a competent claim recognized by law

[10] The seat of the *onus* on this issue is on the defendants. This issue suggests that the plaintiff's claim is not predicated on a valid cause of action. I noted that at the commencement of trial, this issue did not arise from the pleadings, particularly the defendants' pleadings. I however hoped that, as it is an issue of law, the defendants would either raise it during the trial or in the closing submissions; neither of this happened. How this became an issue is not only incomprehensible, but what makes it worse is that the *onus* bearers, the defendants, did not plead it nor even attempt to address it in written closing submissions. This underscores the importance of properly identifying issues for trial. In general, it serves no useful purpose to refer an issue to trial which does not arise from pleadings. In conclusion, the defendants did not discharge the *onus* of proving that the plaintiff's claim as pleaded is incompetent at law.

Whether or not the second defendant is properly cited in the proceedings in his personal capacity

[11] The *onus* on this issue is on the defendants. This issue arises from the defendants' plea that the second defendant cannot be sued together with the company, which is a juristic person, except where the plaintiff sought to pierce the corporate veil, which the plaintiff did not do in this case. In his replication, the plaintiff contends that the second defendant is the director of the company and the person who took the decision to sign the sale agreement on behalf of the company. He is also the registered owner of the Land Rover AGA4472, the vehicle subject to the sale agreement between the plaintiff and the company, and subject of this litigation.

[12] It is important to restate that the separate juristic personality of a company is not a mere technicality. It is foundational to company law. The separate legal personality of a company is to be recognised and upheld except in circumstances permitted by the law. A party cannot simply disregard the 'corporate veil'; disregarding it must be permitted by law. See *Zimbabwe Tourism Authority* v *Ringsilver Enterprises (Pvt) Ltd Ors* 2019 (3) ZLR 1205 (H). Under the

common law and in terms of the provisions of the Companies and Other Business Entities Act [*Chapter 24:31*] or its predecessor, the Companies Act [*Chapter 24:03*], the courts have from time to time knocked down a company's corporate veil to get to the members or directors behind it. This happens in instances where the company is a sham, has been used as a tool to cause harm to others, or where it would be flagrantly unjust to leave the veil intact. See: Part V of the Companies and Other Business Entities Act [*Chapter 24:31*]; *Govere* v *Ordeco (Pvt) Ltd & Anor* 2013 (2) ZLR 257 (S); *Toakona Trading (Pvt)* v *van Rooyen & Anor* 2014 (2) ZLR 781 (H); *Al Shams Global BVI Ltd* v *Sambaza* 2016 (1) ZLR 593 (H).

[13] Citing a director of a company as a co-defendant must be predicated or supported by an allegation of recklessness; or gross negligence; or fraud or some basis of personal liability. It is inadequate to merely allege that he or she is cited because he or she is a director of the company. There must be something more than being a director. In *casu*, there is no basis pleaded in the declaration to cite the second defendant in this action, except that he is a director of the company who signed the agreement of sale. This is hopelessly insufficient. However, this finding is not dispositive of this issue. This is so because the replication and the evidence show that the Land Rover AGA4472 subject to this litigation is registered in the name of the second defendant. By virtue of the Land Rover AGA4472 being registered in his name, he has a real and substantial interest in this matter and is likely to be prejudicially affected by the relief sought therein. See: *Tour Operators Business Assn for Zimbabwe* v *Motor Insurance Pool & Ors* 2015 (1) ZLR 965 (CC); *Anabas Svcs (Pvt) Ltd* v *Ministry of Health & Ors* 2003 (1) ZLR 247 (H); *Zimbabwe Combined Residents' & Ratepayers' Association & Ors* v *City of Harare & Ors* 2020 (1) ZLR 1082 (H). It is in this context that I take the view that the second defendant was properly cited in this matter.

Whether or not the plaintiff entered into an agreement with the first defendant (*sic*) for the sale of the Range Rover vehicle registration number AGA4472

The evidence

[14] The plaintiff's version is predicated on his evidence and that of his witness Cloud Ranganai. It is that on 25 February 2023, the plaintiff entered into an agreement of sale with the second defendant in respect of the Land Rover AGA4472, which vehicle was registered in the name of the second defendant. The purchase price was set at USD$80000, and he paid USD$76000 in cash, topped up with an Audi AGF1973 and remained with a balance of

USD$4000. He took delivery of the Land Rover AGA4472 and surrendered the Audi AGF1973. In August 2023, the first defendant said the Audi AGF1973 had developed a mechanical problem, forcibly repossessed the Land Rover AGA4472, and returned the Audi AGF1973 to the Plaintiff. As proof of payment, the plaintiff relied on the agreement of sale, which provides that an amount of USD$76000 was paid in cash. The plaintiff disputed that he purchased the Land Rover AGA4472 from Bursal Katena and stated that Bursal Katena was not present at the time of signing of the agreement of sale. He disputed that the defendants were acting as agents of Bursal Katena.

[15] Under cross-examination, the plaintiff insisted that his understanding was that the company was acting as an agent of the second defendant, in whose name the Land Rover AGA4472 was registered. He relied on the agreement of sale, wherein it provides the name of the seller as Matimura Blessing, the second defendant. It was put to the plaintiff that USD$76000, plus USD$4000 balance, and the value of the Audi AGA4472 exceeds the purchase price of USD$80000; his answer was that this is what the parties agreed to in their agreement. He insisted that he was not issued with a receipt for the payment of USD$76000, because the agreement acknowledges that he made such cash payment. He stated that after the Land Rover AGA4472 was forcibly repossessed from him, he did not make a police report because he believed he would get relief from this court. He stated that he did not know the whereabouts of the Land Rover AGA4472. He said the Land Rover AGA4472 was repossessed at the defendants' place of business. In re-examination, he stated that although not put in writing, it was agreed that the Audi AGF1973 was valued at USD$10000.

[16] The plaintiff called the evidence of Cloud Ranganai. In summary, his evidence is that he was present when the plaintiff and the defendants entered into the agreement of sale. He stated that the plaintiff offered his Audi AGF1973, and the second defendant said that after the Audi AGF1973, he must pay USD$80000. The second defendant accepted a cash payment of USD$76000, and the balance of USD$4000 to be paid later. He stated that the cash payment of USD$76000 was made in his presence. He did not sign the agreement as a witness because the second defendant said it was not necessary. Under cross-examination, he insisted that there was no need for a receipt because the agreement of sale acknowledged the cash payment. And that he was not allowed to sign the agreement as a witness.

[17] The version of the defendants is predicated on the evidence of the second defendant and Bursal Katena. It is that in 2019 the second defendant imported the Land Rover AGA4472 and

registered it in his name. He sold the vehicle to a land developer, who in return paid him with a piece of land. Sometime in July 2023, he was called by Bursal Katena, who informed him that he was in possession of a vehicle registered in his name (second defendant), and requested him to do an agreement of the sale of this vehicle, being the Land Rover AGA4472. He provided the details of the purchaser, who is the plaintiff, and said the purchase price was USD$80000, and there would be a balance of USD$4000. On 8 August 2023, he met Bursal Katena and the plaintiff at Tiger Wheels and Tyres, in Borrowdale. The two had the Land Rover AGA4472 and Range Rover AFC9977. He was paid his commission for drawing the agreement of sale. He emphasised that he acted as an agent; although the Land Rover AGA4472 was in his name, it was not his vehicle. He stated that he was informed by Bursal Katena that the plaintiff insisted that he wanted the person in whose name the Land Rover AGA4472 was registered to sign the agreement, and that was the reason he signed the agreement of sale. He said he met the plaintiff for the first time on 8 August 2023 at Tiger Wheels and Tyres Borrowdale, where he was in the company of Bursal Katena. He stressed that the vehicle had not been at his business premises, and the plaintiff had never been at his business premises. He stated that the agreement was done on 8 August 2023, and Bursal Katena and the plaintiff requested that it be backdated to 25 February 2023.

[18] The second defendant stated that the Range Rover AFC9977 belonged to the plaintiff and it was given a value of USD$55000, and the Audi AGF1973 was given a value of USD11000. He was told that the plaintiff had already paid USD$11000 to Bursal Katena. The balance of USD$4000 remained outstanding, and this is the amount recorded in the agreement. The only cash he saw was the USD$1000 paid to him as commission. The second defendant disputed that the plaintiff paid a cash amount of USD76000 and insisted that the only cash he saw was USD$1000. He said the transaction was between Bursal Katena and the plaintiff. He denied that he repossessed the Land Rover AGA4472 from the plaintiff. He last saw the Land Rover AGA4472 at Tiger Wheels and Tyres in Borrowdale. Under cross-examination, the second defendant disputed that the plaintiff paid any cash amount, let alone the USD$76000 he is claiming. He stood firmly on the evidence he gave in examination in chief.

[19] The defendant called the evidence of Bursal Katena. His evidence is that he is the owner of the Land Rover AGA4472, which is registered in the name of the second defendant. He agreed with the plaintiff to exchange motor vehicles and a top-up. He gave the plaintiff the Land Rover AGA4472 subject to this litigation, and in turn he got a Range Rover AFC9977

and an Audi AGF1973 from the plaintiff, plus a top-up. Because his Land Rover AGA4472 was still in the name of the second defendant, he decided to involve him in the transaction. He stated that the transaction happened between August and October 2023; however, the plaintiff sought that it be backdated to February 2023, and he agreed. He stated that a value of USD$80000 was put on his Land Rover AGA4472, while the Range Rover AFC9977 of the plaintiff was put at a value of USD$55000. The value of the plaintiff's Range Rover AFC9977, and the value of the Audi AFG1973, and the top up left a balance of USD$4000 due from the plaintiff. He disputed that the plaintiff paid cash of USD$76000 to the second defendant or anyone in this transaction. He stated that the parties met at Tiger Wheels and Tyres in Borrowdale, and that is the place where the agreement was signed. He got the two cars, the Range Rover AFC9977 and the Audi AGF1973, and the plaintiff got the Land Rover AGA4472. He was later approached by one person called Hillary who said he was looking for the Range Rover AFC9977, which he (Bursal Katena) was driving. Hillary is alleged to have said the Range Rover AFC9977 belonged to the deceased estate of the late Lanny Muzvidzwa. It also turned out that the Audi AGF1973 belonged to the same deceased estate. He decided to cancel the agreement with the plaintiff, reposes his Land Rover AGA4472 and return the Range Rover AFC9977and the Audi AGF1973, and with the consent of the plaintiff, these two vehicles were handed over to Hillary. After repossessing his Land Rover AGA4472, he never heard from the plaintiff. He is currently in possession of the Land Rover AGA4472 and is using it because he is the owner. Bursal Katena emphasised that the agreement was between him and the plaintiff. He stated that the second defendant was paid USD$1000 for his services in drawing the agreement of sale. He said he was shocked that the plaintiff has decided to twist the facts and found a claim on incorrect facts.

[20] Under cross-examination, Bursal Katena stated that the plaintiff is also suing him for USD$10000 arising from the same agreement he is suing the defendants for in this case. He stressed that he was the seller of the Land Rover AGA4472 and merely asked the company to do the agreement. He said he requested the second defendant to draw the agreement of sale because the Land Rover AGA4472 was in his name, and the plaintiff suggested that the agreement be with the second defendant for the same reason that the vehicle was registered in his name. He paid the second defendant USD$1000 as commission for drawing the agreement of sale. He explained that the purchase price for the Land Rover AGA4472 was USD$80000. It was paid for as follows: with a Range Rover ACF9977 with a value of USD$ 55000; the

Audi AGF1973 with a value of USD$10000, and the USD$10000 that he is being sued for by the plaintiff, and USD$1000 paid as commission leaving a balance in the sum of USD$4000. He stressed that there was no payment of USD$76000 in cash. He emphasised that the USD10000 he was supposed to receive from the plaintiff is included in the USD$76000. He said the plaintiff instructed him to surrender the Range Rover AFC9977 and Audi AGF1973 to the deceased estate of Lanny Muzvidzwa, represented by Hillary. In re-examination, Bursal Katena stressed that the plaintiff is suing him for an amount of USD$10000 arising from this transaction.

Analysis

[21] This court is confronted with two mutually destructive versions. In such circumstances, the court must assess the credibility and reliability of the witnesses, evaluate the probabilities, and determine whether the party bearing the *onus* of proof has discharged that *onus* on a balance of probabilities. In *National Employers' General Insurance Co Ltd* v *Jagers*[1] 1984 (4) SA 437 (ECD) at 440D-G, the court held that where there are two mutually destructive versions, the plaintiff can only succeed if the court is satisfied on a preponderance of probabilities that his or her version is true and acceptable, and that the defendant's version is false or mistaken and falls to be rejected.

[22] For the plaintiff to succeed, the probabilities must be substantially in his favour. The court must be satisfied that sufficient reliance can be placed on his version to establish a strong probability that his version is the true one. In considering the matter, the credibility of the witnesses should not be considered independently or separately from the probabilities. My view is that the second defendant and Bursal Katena were good witnesses and made a good impression. The defendants' version is detailed, internally coherent on the core sequence, and externally corroborated. A few inconsistences exist, but they are peripheral to the central narrative. For example, the second defendant said the value of the Audi AGF1973 was USD$11000, and Bursal Katena said it was USD$10000. The same cannot be said of the plaintiff and his witness. They were poor witnesses, and their evidence had an artificial ring to it, almost as if they were programmed or as if it was rehearsed. The view I take is that Cloud Ranganai was a hired witness. There no is mention of his name nor the role he played in the plaintiff's synopsis of evidence.

[23] The plaintiff argued that at the absolution from the instance stage, this court found that he had established a *prima facie* case, which, if unanswered, justified a judgment in his favour. This is an unpersuasive argument, and I will dispose of it without much ado. It is trite that the test at the absolution from the instance is different from the test at the end of the trial. At the absolution stage, all the plaintiff has to do is to establish a *prima facie* case. See: *Mashonaland Turf Club v Peters & Anor* 2021 (1) ZLR 463 (H). At the end of the trial the plaintiff must prove his case on a balance of probabilities. It is in this context that the submission lacks cogency because the plaintiff's case has been answered by the defendants and corroborated by a witness, Bursal Katena. Therefore, the finding made at the absolution stage, where the court had one version, has no relevance at this stage because the court now has both versions, that is, of the plaintiff and the defendants.

[24] The question to be answered is whether the agreement of sale for the Land Rover AGA4472 was between the plaintiff and the second defendant. The *onus* on this issue is on the plaintiff. The version of the plaintiff that he purchased the vehicle from the second defendant cannot survive closer examination. It is common cause that this vehicle is registered in the name of the second defendant. It is further not in dispute that the sale agreement was drawn up by the defendants, and that it provides that the second defendant is the seller. There is sufficient explanation for the reason the second defendant is recorded as the seller. He imported this vehicle in 2019 and registered it in his name. He sold it to a land developer, who in return paid him with a piece of land. The land developer did not transfer the vehicle into his name. The fact that the second defendant did not produce an agreement of sale with the land developer is inconsequential. The fact is that the vehicle ended up with Bursal Katena, who intended to sell it to the plaintiff. Bursal Katena requested the second defendant to draw up an agreement of sale and provided the details of the plaintiff to be recorded in the agreement. This was so because the plaintiff requested that the person in whose name the vehicle was registered had to be involved and that the defendants are in the business of selling vehicles. The parties met at Tiger Wheels and Tyres in Borrowdale where the agreement was signed. The defendants were paid an agent commission of USD$1000.

[25] Bursal Katena explained in detail that he agreed with the plaintiff to exchange motor vehicles and a top-up. He gave the plaintiff the Land Rover AGA4472, which is subject to this litigation, and in turn he got a Range Rover AFC9977 and an Audi AGF1973 from the plaintiff, plus a promise of a cash top-up. Because his Land Rover AGA4472 was still in the name of

the second defendant, he decided to involve him in the transaction. He stated that the transaction happened between August and October 2023; however, the plaintiff sought that it be backdated to February 2023, and he agreed. I accept that the agreement was done in August 2023, and it was backdated to 25 February 2023. This is supported by the fact that Bursal Katena repossessed the Land Rover AGA4472 from the plaintiff in August 2023. I do not believe for a moment that the second defendant would have kept and used the Audi AGF1973 for a period approximating six months and then returned it to the plaintiff on the basis that it had developed a mechanical fault. After that long, it could have been his vehicle, and he could have been responsible for whatever mechanical faults that it developed. Further, the plaintiff's assertion that he got the Land Rover AGA4472 in February 2023, kept it and used it until it was forcibly repossessed from him in August 2023 is beyond the realm of belief. He is an enlightened person, if this was the case, he would have either made a police report or sought a spoliation order, or both.

[26] In addition, credible evidence shows that it was Bursal Katena who repossessed the Land Rover AGA4472 from the plaintiff. He repossessed it after the Range Rover AFC9977 and Audi AGF1973 were handed over, with the consent of the plaintiff, to the estate of Lanny Mazvidzwa. The Land Rover AGA4472, which the plaintiff is claiming from the defendants in the possession of Bursal Katena, and he is using it as his own. My view is that the plaintiff knows very well that the vehicle he is suing the defendants for, is in the possession of Bursal Katena. Furthermore, the plaintiff is in a separate action, is suing Bursal Katena for the amount of USD$10000 arising from this transaction, in which he is suing the defendants. It appears the plaintiff thought that he would hide behind the written agreement of sale to seek an order in his favour. The cumulative effect of these facts constitutes a weighty indication that despite the wording of the written agreement of sale, the actual agreement was between the plaintiff and Bursal Katena. To answer the question posed above, the plaintiff has not discharged the *onus* of proving that there was an agreement, in respect of the Land Rover AGA4472, between him and the defendants, both or separately.

Whether or not the plaintiff paid USD$76,000.00 to the first defendant

[27] The question is whether the plaintiff made a cash payment of USD$76000 to the first defendant. The *onus* on this issue is on the plaintiff. The credible evidence shows that the plaintiff did not make a cash payment of USD$76000. He has no receipt of such payment. The

submission that it is recorded in the agreement of sale that a payment of USD$76000 was made in cash is not enough. The emptiness of this argument becomes even more apparent if consideration is made of the fact that it is not in dispute that the Land Rover AGA4472 was valued at USD$80000. If the plaintiff made a cash payment of USD$76000, remaining with a balance of USD$4000, there would have been no reason for him to further top up with the Audi AGA4472, which was given a value of USD$10000. This means he gave the second defendant the Audi for no return in value. This is incredulous.

[28] Bursal Katena meticulously explained that the USD$76000 was in the form of the Range Rover AFC9977 valued at USD$55000; Audi AGF1973 valued at USD$10000; and a USD$10000 he was supposed to receive from the plaintiff; and the USD$1000 commission paid to the second defendant. Simple mathematics shows that USD$55000 + USD$10000 + USD$10000 + USD$1000 = USD$76000. Therefore, the USD$76000 stated in the agreement of sale tallies with the explanation given by Bursal Katena. In addition, Bursal Katena also explained that the purchase price for the Land Rover AGA4472 was USD$80000.Part of the USD$76000 was paid in kind, leaving a balance of USD$4000. In any event, a person does not part with USD$76000 in cash and leave without a receipt or proper proof of payment. On the facts of this case, the argument that the agreement of sale is proof of payment is unsustainable. Further, the assertion that the plaintiff was walking around carrying such a large sum of money looking for a vehicle to buy is beyond the realm of belief. And the coincidence of getting a vehicle whose purchase price was close to the cash he was carrying shows that his version is concocted. The cumulative effect of these facts constitutes a weighty indication that the plaintiff did not discharge the *onus* of proving that he made a cash payment of USD$76000 to the defendants.

Conclusion

[29] The plaintiff has not proved that he entered into an agreement with the first or second defendants in respect of the Land Rover AGA4472, and that he paid the sum of USD$76000 in cash to the defendants. In the circumstances, he has not discharged the *onus*, on a preponderance of probabilities, that his version is true and acceptable, and that the defendants' version is false or mistaken and falls to be rejected. My view is that the plaintiff's claim is founded on contrived facts. It is for these reasons that the plaintiff cannot succeed in his claim against the defendants.

Costs

[30] I am left with the question of costs. In their plea, the defendants sought a punitive costs order. Costs on an attorney and client scale are awarded when a court wishes to mark its disapproval of the conduct of a litigant. Over the years, courts have awarded costs on an attorney and client scale to mark their disapproval of fraudulent, dishonest or mala fides conduct; vexatious conduct; and conduct that amounts to an abuse of the process of court. It is trite that costs on the attorney-and-client scale constitute an extraordinary remedy, reserved for cases where a litigant's conduct is clearly vexatious and reprehensible. Such an award is exceptional in nature, is punitive in effect, and reflects the court's strong disapproval of such conduct. See: *Railings Enterprises (Pvt) Ltd* v *Luwo & Ors* 2020 (2) ZLR 51 (H); *H J Voster (Pvt) Ltd* v *Parks and Wildlife Management Authority* 2020 (2) ZLR 1075 (H). Such costs are not punishment for losing a case.

[31] The plaintiff's case is predicated on contrived facts. He deliberately chose to mount litigation based on a falsehood. He knows that he purchased the Land Rover AGA4472 from Bursal Katena, and that the Range Rover AFC9977 and Audi AGF1973 were repossessed, with his consent, by the estate of Lanny Muzvidzwa. And that Bursal Katena cancelled the agreement and repossessed the Land Rover AGA4472, but he still sued the defendants for the return of the same vehicle he knows is with Bursal Katena. In a separate matter, he is suing Bursal Katena for the USD$10000 arising from the same transaction, yet in this case he falsely insists that he purchased the Land Rover AGA4472 from the defendants. This claim is fraudulent, dishonest or *mala fides*; and the plaintiff is guilty of vexatious conduct; and conduct that amounts to an abuse of the process of court. There is no justification for the defendants to be put out of pocket for such a frivolous and vexatious claim. A punitive costs order is warranted.

In the result, I make the following order:

The plaintiff's claim is dismissed with costs on a legal practitioner and client scale.

Tafirei and Company, plaintiff's legal practitioners
Rusinahama-Rabvukwa Attorneys, defendant's legal practitioners